

TENTATIVE RULINGS for LAW and MOTION

February 3, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Doe v. Foundation for Excellence at Woodland Christian Schools**
Case No. CV2023-1946

Hearing Date: **February 3, 2026** **Department Eleven** **9:00 a.m.**

The Court declines to rule on plaintiff John Doe’s objection to reply brief and declaration because the evidence objected to was not considered in ruling on the motion. (See also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

Defendant Foundation for Excellence at Woodland Christian Schools’ motion for sanctions is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 128, 128.5, 128.7, 1008; Cal. Rules of Court, rule 2.30(b).) First, as to the request for sanctions under sections 128.5, 128.7, and 1008, the motion for sanctions was not “made separately from other motions or requests.” (Code Civ. Proc., §§ 128.5, subd. (f)(1)(A), 128.7, subd. (c)(1), 1008, subd. (d).) Further, defendant has failed to establish that sanctions, pursuant to these code sections, are warranted against plaintiff under the circumstances. (Code Civ. Proc., §§ 128.5, subd. (b)(2), 128.7, subd. (b); see generally Loorz decl.) Second, as to the request for sanctions under section 128 and California Rules of Court, rule 2.30, defendant does not “state the applicable rule that has been violated” and fails to demonstrate that this Court can issue sanctions under section 128. (Cal. Rules of Court, rule 2.30(c); Code Civ. Proc., § 128.)

Plaintiff’s request for sanctions against defendant’s counsel is **DENIED**. Plaintiff did not cite legal authority to support his request for sanctions. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also Shepardson decl., ¶¶ 16-17.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mitchell v. Langston**
Case No. CV-2025-3055

Hearing Date: **February 3, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Frederick Mitchell’s (“plaintiff”) motion for a court order to disregard the false “declaration of demurring or moving party regarding meet and confer” filed on November 24, 2025, under penalty of perjury as to defendant Theresa Langston (“defendant”) and to enter default and default judgment nunc pro tunc to November 25, 2025, and defendant’s demurrer to plaintiff’s complaint are **STAYED**, pursuant to this Court’s inherent authority, pending resolution of plaintiff’s writ of mandate, filed on January 27, 2026, in the Third District Court of Appeal, Case No. C105543. The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141, citing *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Wells Fargo Bank, N.A. v. Gale
Case No. CV-2025-0214

Hearing Date: February 3, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that plaintiff Wells Fargo Bank, N.A. failed to properly meet and confer “in person or by telephone, or by video conference ” prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Agne Decl., ¶¶ 1, 2, Ex. A.) However, the Court may not deny a judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Plaintiff’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff’s motion for judgment on the pleadings is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 439.) The Court finds that plaintiff fails to show that the complaint states facts sufficient to constitute a cause of action for breach of contract against defendant Roberta Gale. (Code Civ. Proc., § 438, subd. (c)(1)(A) [a judgment on the pleadings may be brought when the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.